

ASCII MASTER FLOW – PANEL 1/12: THE CONSTITUTIONAL QUESTION

1600 chartered commerce -> 1757 Plassey -> 1764 Buxar -> 1765 Diwani

-> corporate fiscal-territorial power without public accountability

-> 1773 Parliament begins statutory regulation

CONTROL TEST: who directs the executive, makes law, controls money and is represented?

ASCII MASTER FLOW – PANEL 2/12: 1773-1793 CONTROL ARCHITECTURE

1773: GG of Bengal + council; Calcutta Supreme Court opened 1774

1781: official/revenue jurisdiction clarified; personal law recognised

1784: Board of Control + Court of Directors = metropolitan double government

1786/1793: stronger executive override; monopoly renewed; supervision charged to India

TRAP: Bengal Dual Government (1765-72) is not Pitt's double-government structure.

ASCII MASTER FLOW – PANEL 3/12: 1813-1853 CHARTER TRANSFORMATION

1813: monopoly ends EXCEPT tea/China; Crown sovereignty; missionaries; education grant

1833: GG of India (Bentinck); Company trade ends; central legislation; Law Member

1853: legislative/executive work differentiated; six councillors; four local members;

open competition route -> Macaulay Committee 1854; no fixed Company renewal

VERDICT: the Company ceased to be trader before it ceased to be ruler.

ASCII MASTER FLOW – PANEL 4/12: 1858 CROWN TRANSFER

Company, Court of Directors and Board of Control abolished

-> Secretary of State for India + 15-member Council

-> Governor-General also Viceroy; Lord Canning first

CHANGE: corporate sovereignty -> Crown sovereignty

LIMIT: accountability shifted to Britain, not to an Indian representative legislature.

ASCII MASTER FLOW – PANEL 5/12: REPRESENTATION WITHOUT RESPONSIBILITY

1861 nomination -> Indian non-officials; portfolio; provincial legislation; ordinances

1892 scrutiny -> budget discussion + questions; indirect-election element

1909 segmented election -> separate Muslim electorates; central official majority;

S.P. Sinha first Indian in Viceroy's Executive Council

LADDER: association -> scrutiny -> election; executive responsibility remains absent.

ASCII MASTER FLOW – PANEL 6/12: 1919 DYARCHY

CENTRE: subject separation + bicameralism + direct restricted election

PROVINCES:

RESERVED -> finance, police, justice, prisons, land revenue -> Governor/Executive Council

TRANSFERRED -> education, health, agriculture, local government -> responsible ministers

OTHER: High Commissioner; provincial budgets; PSC -> Central PSC 1926; Chamber of Princes

FAILURE: responsibility without full finance, coercion or coordinating authority.

ASCII MASTER FLOW – PANEL 7/12: BRIDGE TO 1935
Simon Commission 1927 (all seven British) -> report 1930
-> Round Tables 1930/1931/1932 -> White Paper -> Joint Select Committee -> 1935 Act
Communal Award 1932 -> separate electorates for depressed classes proposed
-> Poona Pact -> reserved seats within joint electorates
TRAP: Simon alone did not write 1935; Poona Pact did not retain separate electorates.

ASCII MASTER FLOW – PANEL 8/12: 1935 PROVIDED VERSUS OPERATED
PROVIDED: Federation = provinces + acceding princely states; three lists;
residuary allocation by Governor-General; central dyarchy
OPERATED: provincial autonomy from 1937; Federal Court from 1937
NOT COMMENCED: federation and central dyarchy
RESERVED CENTRE: defence, external affairs, ecclesiastical affairs, tribal areas

ASCII MASTER FLOW – PANEL 9/12: 1935 INSTITUTIONAL DEPTH
bicameralism in Bengal, Bombay, Madras, Bihar, Assam, United Provinces
Federal/Provincial/Joint PSCs | Auditor-General | Federal Railway Authority
Council of India abolished | Burma separated | Orissa and Sind created
franchise expanded but qualification-based | Governors retain safeguards
RBI CONTROL: RBI Act 1934 created the bank; operations began 1935.

ASCII MASTER FLOW – PANEL 10/12: 1947 SOVEREIGNTY BRIDGE

20 Feb Attlee -> 3 Jun Plan -> 18 Jul Act -> 15 Aug Dominions
-> Viceroy and Secretary of State for India abolished
-> Assemblies legislate, frame constitutions and repeal British Acts
-> paramountcy lapses; accession is not automatic absorption
-> adapted 1935 Act prevents a legal-administrative vacuum
-> 26 Nov 1949 adoption -> 26 Jan 1950 Republic

ASCII MASTER FLOW – PANEL 11/12: INSTITUTIONAL LINEAGES

EXECUTIVE: GG Bengal -> GG India -> Viceroy -> parliamentary executive
LEGISLATURE: centralisation -> nomination -> scrutiny -> election -> responsibility
JUDICIARY: Calcutta Supreme Court -> High Courts 1861 -> Federal Court 1937 -> Supreme Court
SERVICES: patronage -> 1853 competition -> PSC 1926 -> 1935 commissions -> UPSC/SPSC
FINANCE/AUDIT: Diwani -> budget scrutiny -> provincial budgets -> RBI/audit -> CAG
RULE: ancestry does not prove identical power, independence or purpose.

ASCII MASTER FLOW – PANEL 12/12: EXAM CONTROL AND VERDICT

1773 GG Bengal != 1833 GG India != 1858 Viceroy
1909 separate electorate != 1919 provincial dyarchy != 1935 autonomy
1935 federation/central dyarchy: provided, NOT commenced
1947 paramountcy: lapsed, NOT automatically transferred
ANSWER: claim -> named Act -> effect -> limit -> retained/transformed/rejected
VERDICT: inherited machinery + democratic rupture = constitutional transformation.